

Independent Contractor & Content Royalty Agreement

THIS AGREEMENT is made on 16th September, 2026

BETWEEN

1. **Hughes, Joshua James** trading as **AviPrep** (ABN 80 167 432 520) ("AviPrep", "we", "us")
2. **Name** [trading as **xxx**] (ABN xxx) ("Contractor", "you")

1. Scope of Services & Deliverables

1.1 Engagement

AviPrep engages the Contractor as an independent content curator to create, review, update, and validate aviation theory content, including practice questions, explanations, course modules, and media ("Content").

1.2 Standards

All content created must be factually accurate, original, and strictly mapped to the current Civil Aviation Safety Authority (CASA) Part 61 Manual of Standards (MOS).

1.3 Approval Process

AviPrep reserves the right, at its sole discretion, to approve, reject, edit, or archive any Content submitted by the Contractor. Only published and "Active" Content will be eligible for royalty calculations, as per Section 3.

2. Intellectual Property (IP) Ownership

2.1 Assignment of IP

The Contractor hereby unconditionally and irrevocably assigns to AviPrep all present and future Intellectual Property Rights (including copyright) in all Content created under or in connection with this Agreement.

2.2 Moral Rights

To the extent permitted by the *Copyright Act 1968 (Cth)*, the Contractor unconditionally consents to AviPrep using, modifying, adapting, deleting, or publishing the Content with or without attributing authorship to the Contractor.

2.3 Warranties

The Contractor warrants that all Content provided is original, does not infringe upon any third-party IP rights, and does not violate CASA exam confidentiality rules.

3. Compensation & Revenue Share

3.1 Acknowledgement of Costs

The Contractor acknowledges that AviPrep bears 100% of the financial risk and operational costs of the platform, including web hosting, software development, marketing, advertising, and business administration.

3.2 Net Revenue Definition

"Net Revenue" means the total gross revenue actually received by AviPrep from Student subscriptions or purchases of a specific Subject/Course, minus payment gateway processing fees (e.g., Stripe), applicable taxes (including GST), and customer refunds.

3.3 The Content Royalty Pool

AviPrep will allocate 25% of the Net Revenue generated by a specific Subject/Course to a shared “Content Royalty Pool” for that specific Subject/Course.

3.4 Contribution Weighing

To ensure fair compensation among multiple curators contributing to the same Subject/Course, the Contractor’s share of the Content Royalty Pool will be calculated based on active contribution “Points”. Points are assigned upon Content publication as follows:

- (a) Basic Multiple-Choice Question (with standard explanation): **1 Point**
- (b) Complex Question (requiring chart work, multi-step calculations, images, etc.): **3 Points**
- (c) Comprehensive Theory Lesson / Written Chapter / Video: **10 Points**

3.5 Proportional Payment Formula

At the end of each calendar month, the Contractor’s royalty payment for a specific Subject/Course will be calculated using the following formula:

$$\frac{\text{Contractor's Total Active Points in Subject}}{\text{Total Active Points in Subject Database}} \times \text{Subject Content Royalty Pool}$$

3.6 Content Lifecycle

If Content becomes outdated (e.g., due to CASA MOS or AIP updates) and the Contractor does not update it, AviPrep may archive or replace the Content. Archived or deleted Content ceases to earn Points.

3.7 Payment Terms

Royalties will be calculated Monthly and paid within **14 days** following the end of each calendar month. Payments will be accompanied by a transparent breakdown of active Points and total subject revenue.

3.8 Taxation

The Contractor is solely responsible for their own income tax, GST (if registered and applicable), and superannuation. Payments will be made upon receipt of a valid tax invoice from the Contractor (or via Recipient Created Tax Invoice if mutually agreed).

4. Independent Contractor Status

The Contractor acts at all times as an independent contractor. Nothing in this Agreement creates an employment, partnership, joint venture, or agency relationship. The Contractor has no authority to bind AviPrep to any third-party agreements.

5. Confidentiality

The Contractor agrees to keep all non-public information – including AviPrep’s software architecture, financial data, user metrics, future feature roadmaps, and unreleased content – strictly confidential during and after the term of this Agreement.

6. Transfer and Future Incorporation (Pty Ltd Novation)

The Contractor explicitly agrees that AviPrep (acting as a Sole Trader) may at any time assign or novate this Agreement, along with all assigned Intellectual Property Rights, to a newly incorporated corporate entity (e.g., AviPrep Pty Ltd) upon written notice. The Contractor agrees to execute any documents reasonably required to effect this transfer.

7. Termination

7.1 Termination for Convenience

Either party may terminate this Agreement at any time by giving 30 days written notice to the other party.

7.2 Termination for Breach

AviPrep may terminate this agreement immediately if the Contractor breaches IP warranties, confidentiality, or engages in conduct detrimental to AviPrep’s reputation.

7.3 Post-Termination Royalties

Upon termination (unless terminated for breach by the Contractor), AviPrep will continue to pay the Contractor their proportional royalty share based on their active Content for a period of 12 months following the termination date. After this tail period, all royalty obligations cease, but AviPrep retains full and perpetual ownership of the Content.

Executed as an Agreement

Signed by AviPrep

X

Hughes, Joshua James, T/A AviPrep

Signed by Contractor

X

Contractor, T/A xxx